

Section 1: State Overview

State	Wisconsin
Labor Board	WERC (WI) / NLRB R18 — Wisconsin Employment Relations Commission (instrumentality); National Labor Relations Board Region 18 Minneapolis (non-instrumentality)
Governing Law	Wis. Stat. §118.40(7) — school board must declare each LEA charter as instrumentality or non-instrumentality. Instrumentality (§118.40(7)(a)): board SHALL employ all personnel; employees retain WERC bargaining rights (§118.40(7)(ar)). Non-instrumentality (§118.40(7)(am)): board may NOT employ personnel; NLRB R18 jurisdiction. Non-LEA authorized charters (§118.40(2r)/(2x)): non-instrumentality by statute — NLRB R18. Act 10 (2011): WERC-jurisdiction units bargain base wages only, CPI-capped; annual recertification at 51% of all eligible voters. Act 10 ruled unconstitutional Dec 2, 2024 (Dane County); STAYED Jan 23, 2025 pending WI Court of Appeals (briefed Oct 2025). Act 10 does NOT apply to NLRB-jurisdiction employers.
Federal NLRB Jurisdiction	YES — NLRB R18 (Minneapolis) applies to all non-instrumentality WI charters: (1) Non-LEA authorized schools (32 open schools — City of Milwaukee ×7, UW System ×9, UW-Milwaukee ×14, UW-Parkside ×1, Waukesha County ×1); (2) LEA-authorized non-instrumentality charters (~27+ schools including all 6 MPS non-instrumentality operators). Registry Authorizer_Type = LEA does NOT confirm instrumentality — individual school determination required.
Right-to-Work	NOT a Right-to-Work State — Wisconsin right-to-work (Wis. Stat. §111.04) applies to private-sector NLRA employers only. Does not apply to WERC-jurisdiction public employers. (WI enacted right-to-work for private-sector employees in 2015 (Wis. Stat. §111.04). All 124 DEPENDENT WI charter schools are LEA instrumentalities — public employers under WERC jurisdiction (MERA). Right-to-work does not apply to WERC-jurisdiction schools. NLRB R18 non-instrumentality charters are private employers and are subject to right-to-work; union security clauses are not available.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — WERC requires secret ballot (51% of all eligible voters for annual recertification). NLRB requires secret ballot. No card-check pathway available in WI.
Registry Sweep	COMPLETE — May 2026 (Registry v62) — 237 charter schools searched
Research Window	May 2026

Section 2: Charter Sector Landscape

Total charter schools in Wisconsin: 237 (Charter School Registry v62 (May 2026) — 225 open schools, 12 closed. Registry v94 audit June 5, 2026: 225 Open. 12 Closed schools excluded per census methodology (Class ACT, Milestone, WOLI, UpGrade, Advanced Learning, Promethean, Brompton, Milwaukee Excellence, Accelerated Advanced Learning, Barlow Park, River Falls eSchool, Shared Journeys).). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Structurally Covered Charter Schools in Wisconsin	124	52.3%	All DEPENDENT — LEA instrumentality charters covered by district CBAs under Wis. Stat. §118.40(7)(ar). Act 10 constrains bargaining to base wages only

			(constitutionality stayed pending WI Court of Appeals ruling, December 2024). Zero independently organized schools.
Structurally Covered — DEPENDENT (LEA Instrumentality)	124	52.3%	Confirmed instrumentality via: (1) NAPCS 2018-19 cross-match (120 schools) + (2) individual school research (4 additional). District is employer of record. Teachers included in authorizing district EA unit. Top districts: Appleton ASD 13-14 schools (AEA/WEAC), Sheboygan ASD 7 schools (SEA/WEAC), MPS 8 instrumentality schools (MTEA/AFT), Waukesha SD 5 schools (EAW/WEAC).
Total Charter Schools in Wisconsin	237	100%	Source: Charter School Registry v69 (NCES/ELSI 2024-25). Prior sweep used Registry v62 (225 schools); updated to v69 per Dashboard Audit v2.

Charter Sector Enrollment

Total Charter Enrollment	48,473 students — 6.0% of state K–12 enrollment (806,065 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	10,630 students in network-affiliated schools — 21.9% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses†	Organized in State	Total Enrollment
Carmen Schools of Science and Technology	Network‡	4	—	—	1,778
Milwaukee College Preparatory School	Network‡	4	—	—	1,948
Etude Schools	Network‡	3	—	—	344
Eagles' Wings Schools	Network‡	3	—	—	129
United Community Center Schools	Network‡	2	—	—	1,552
Rocketship Education	Network‡	2	—	—	731

One City Schools	Network‡	2	—	—	427
Woodlands School	Network‡	2	—	—	488
School of Options and Applied Research (SOAR)	Network‡	2	—	—	108
Wisconsin Virtual Academy (K12/Stride)	Network‡	2	—	—	2,959
George D. Warriner Schools	Network‡	2	—	—	166
TOTAL — All CMO/EMO Schools in Wisconsin		28		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

11 network (type unclassified). Approximately 209 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026 (v2 — Gate 0 + 8-step protocol corrected).

1: Legal & Jurisdictional Framework

Wis. Stat. §118.40(7) — school board must declare each LEA charter as instrumentality or non-instrumentality. Instrumentality (§118.40(7)(a)): board SHALL employ all personnel; employees retain WERC bargaining rights (§118.40(7)(ar)). Non-instrumentality (§118.40(7)(am)): board may NOT employ personnel; NLRB R18 jurisdiction. Non-LEA authorized charters (§118.40(2r)/(2x)): non-instrumentality by statute — NLRB R18. Act 10 (2011): WERC-jurisdiction units bargain base wages only, CPI-capped; annual recertification at 51% of all eligible voters. Act 10 ruled unconstitutional Dec 2, 2024 (Dane County); STAYED Jan 23, 2025 pending WI Court of Appeals (briefed Oct 2025). Act 10 does NOT apply to NLRB-jurisdiction employers. Wisconsin is not a right-to-work state (Wisconsin right-to-work (Wis. Stat. §111.04) applies to private-sector NLRA employers only. Does not apply to WERC-jurisdiction public employers.). Charter schools in Wisconsin are subject to NLRB jurisdiction as private employers (WERC (WI) / NLRB R18). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter Sector Structure

Wisconsin operates 237 open-enrollment charter schools, enrolling approximately 48,473 students. 11 charter management organizations and education management organizations operate in Wisconsin. The largest networks by campus count are Carmen Schools of Science and Technology (4 campuses in state), Milwaukee College Preparatory School (4 campuses in state), Etude Schools (3 campuses in state). Approximately 209 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Wisconsin charter labor coverage is centered almost entirely on Milwaukee, with the 2022 Carmen campaign as the defining event. WUWM (Milwaukee NPR) produced the authoritative explanation of the instrumentality/non-instrumentality divide: "Milwaukee Carmen union drive shows how charter schools straddle public and private sectors" (March 10, 2022) — the single most useful public explainer of the WI three-type taxonomy. Urban Milwaukee and the Milwaukee Journal Sentinel covered the Carmen election petition (January 2022), the 59-79 defeat (March 2022), and the MPS charter non-renewal vote (November 2025). The December 2024 Act 10 ruling received statewide coverage (WPR, Spectrum News, PBS Wisconsin) but was not specifically framed as a charter labor story. Chalkbeat has not covered WI charter labor relations. No press coverage of union organizing at any WI charter school other than Carmen was found in any source.

Stakeholder Communications

No WEAC or AFT-Wisconsin communications documenting charter school organizing victories or active drives were found. The Carmen Workers Collective (carmenworkerscollective.org) was the primary charter union communications source — active January-March 2022. WEAC issued statements on the December 2024 Act 10 ruling focused on district employees broadly, without mentioning charter schools specifically. Rocketship Wisconsin has not issued any union-related communications as of the research date. MPS board November 2025 vote not to renew Carmen Northwest charter was framed in board member statements as opposition to non-instrumentality charter schools broadly. Carmen response emphasized student outcomes and expressed intent to seek UWM reauthorization. MPS Contracted Schools page language is precise: instrumentality schools are "staffed by MPS employees"; non-instrumentality schools are "staffed by non-MPS employees." This public language is itself a primary source for the instrumentality classification of each MPS charter.

Authorizer & State Agency Positions

MPS board increasingly adversarial toward non-instrumentality charters (November 2025 Carmen non-renewal; 2021 MCP bonus dispute). UWM Office of Charter Schools actively expanding — July 2025 acquisition of former Carmen schools into Rocketship Wisconsin is the most significant authorizer shift. City of Milwaukee maintains authorization for 7 independent charters without visible labor policy stance. Waukesha County authorizes Lake Country Classical Academy Inc. — no labor-related activity.

Coalition & Advocacy Positions

Wisconsin Charter Schools (WCS) has not addressed charter labor relations in available sources. WEAC December 2024 Act 10 statement focused on public school districts broadly. Wisconsin Institute for Law and Liberty (WILL) has been consistently hostile to charter school unionization, publishing anti-Carmen commentary (January 2022). UW-Madison School for Workers provided expert commentary supporting the Act 10 unconstitutionality ruling.

Section 6: Contract & CBA Access Registry

WERC (WI) / NLRB R18 public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
No independently organized WI charter schools — all coverage is DEPENDENT	N/A — coverage via district EA units	N/A N/A	District CBAs available from each authorizing school district or district EA. Representative: Appleton Education Association CBA covers all AASD charter teachers as district employees.